

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Tweed Fisheries Act, 1857	20 & 21 Vict. c. cxlviii.
Tweed Fisheries Amendment Act, 1859	22 & 23 Vict. c. lxx.
Salmon Fisheries (Scotland) Act, 1868	31 & 32 Vict. c. 123.
Criminal Procedure (Scotland) Act, 1887	50 & 51 Vict. c. 35.
Freshwater Fish (Scotland) Act, 1902	2 Edw. 7. c. 29.
Summary Jurisdiction (Scotland) Act, 1908	8 Edw. 7. c. 65.
Diseases of Fish Act, 1937	1 Edw. 8 & 1 Geo. 6. c. 33.
Transport Act, 1947	10 & 11 Geo. 6. c. 49.

CHAPTER 27

An Act to amend sections twenty-six and twenty-seven of the Fire Services Act, 1947. [10th May 1951.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendments
of s. 26.
10 & 11 Geo. 6.
c. 41.

1.—(1) The powers conferred by section twenty-six of the Fire Services Act, 1947 (which enables the Secretary of State to make orders for bringing into operation a Firemen's Pension Scheme or for varying that Scheme) shall include power to make an order revoking any previous order under that section (whether made before or after the commencement of this Act) and bringing into operation a fresh scheme thereunder.

(2) Any reference in the said Act or this Act to the Firemen's Pension Scheme shall be construed, unless the context otherwise requires, as including a reference to any fresh scheme made under the said section twenty-six as amended by this section.

(3) Subsection (2) of the said section twenty-six (which specifies matters for which provision may be made by the Firemen's Pension Scheme) shall have effect as if for the words "employment specified under paragraph (b) of this subsection", where those words occur in paragraph (d) of that subsection and where they occur for the second time in paragraph (e) of that subsection, there were substituted the words "employment which is treated for the purposes of the Scheme as if it were employment as a member of a fire brigade maintained in pursuance of this Act".

2.—(1) Subject to the provisions of section twenty-seven of the Amendment Fire Services Act, 1947, the Firemen's Pension Scheme may provide that in relation to persons of such classes as may be prescribed by the Scheme, being persons to whom awards may be made thereunder in respect of any employment, the provisions of the Scheme shall have effect to the exclusion of any provision for pension, allowance or gratuity in respect of that employment contained in or in force under any other enactment. of s. 27.

(2) Subsection (1) of the said section twenty-seven (which excludes statutory pension schemes other than the Firemen's Pension Scheme in the case of any employment as a member of a fire brigade maintained in pursuance of that Act) shall cease to have effect on the date on which the first provision included in the said Scheme in pursuance of this section takes effect; and in relation to any period before that date the said subsection (1) shall apply, and shall be deemed always to have applied, only to persons being firemen as defined by the Firemen's Pension Scheme as originally made, or required to be treated thereunder as if they were firemen as so defined.

(3) Where by virtue of subsection (2) of this section any person would be liable to pay contributions under or by virtue of any enactment other than the Firemen's Pension Scheme in respect of any such period as is mentioned in that subsection, he may, by notice in writing given within three months after the expiration of that period to the authority to whom those contributions would be so payable, elect that the said section twenty-seven shall apply in his case in relation to that period as originally enacted and not as amended by the said subsection (2).

(4) Subsection (5) of the said section twenty-seven (which saves the operation of the National Insurance (Industrial Injuries) Act, 1946, and the National Insurance Act, 1946) shall have effect as if the reference therein to subsection (1) of that section included a reference to subsection (1) of this section. 9 & 10 Geo. 6.
c. 62.
9 & 10 Geo. 6.
c. 67.

3.—(1) There shall be paid out of moneys provided by Parliament any increase attributable to the provisions of this Act in the sums payable out of such moneys under any other enactment. Financial provisions.

(2) Any receipts of the Secretary of State under the Fire Services Act, 1947, as amended by this Act shall be paid into the Exchequer.

4.—(1) This Act may be cited as the Fire Services Act, 1951, and this Act and the Fire Services Act, 1947, may be cited together as the Fire Services Acts, 1947 and 1951. Citation,
construction
commence-
ment and
extent.

(2) References in this Act to any enactment shall be construed as references to that enactment as amended by any subsequent enactment, including (unless the context otherwise requires) this Act.

(3) This Act shall come into force one month after the passing of this Act.

(4) This Act shall not extend to Northern Ireland.

CHAPTER 28

An Act to make temporary provision for the protection of occupiers of residential property in Scotland under leases of not less than thirty-one years.

[10th May 1951.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Continuation
of certain
leases.

1.—(1) Where, in terms of any lease to which this section applies, the lease falls within the period of two years beginning with the commencement of this Act, the lease shall, subject as hereinafter provided, have effect as if for such lease there were substituted the date when the said period expires.

(2) This section applies to any lease for not less than thirty-one years of property in Scotland if, immediately before the lease, the tenant or a member of his family is living in the property or a part thereof in pursuance of the lease.

Power of
tenant to
exclude
operation of
foregoing
section.

2.—(1) Where the tenant under any such lease as is mentioned in subsection (1) of the foregoing section gives to the landlord, within the time hereinafter specified, notice in writing that he does not desire that the lease shall be continued under the said subsection (1), that subsection shall not have effect regarding such lease.

(2) Notice for the purposes of the last foregoing subsection shall be given not later than forty days before the lease, or, if the lease occurs not more than forty days after the commencement of this Act, such notice shall be given not later than forty days after such commencement.

(3) Where a lease has been continued under subsection (1) of section one of this Act, and the tenant gives to the landlord notice in writing that he desires that the said subsection (1)